

TENTATIVE RULINGS

July 20, 2026

	Case Name	Tentative
103	2023-01360760 Concord Investment Counsel Inc. vs. Depaolo & May Strategic Wealth LLC.	Motion to Be Relieved as Counsel of Record Steven C. Smith, Michael H. Cooper, and Smith LC's Motion to be relieved as counsel for Plaintiff Concord Investment Counsel Inc. is denied. This matter was ordered to binding arbitration on July 1, 2024 and this action was stayed pending resolution of the arbitration proceeding. (ROA 37.) Accordingly, this motion should be brought before the arbitrator. <i>SWAB Financial, LLC v. E*Trade Securities, LLC</i> (2007) 150 Cal.App.4th 1181, 1200-1201. Moving party is ordered to give notice.
104	2020-01129890 Farah vs. Dearmin	1. Motion to Tax Costs of Nicholas Dutra 2. Motion to Tax Costs of Mitchell Zogob 3. Motion to Tax Costs of Therese Harris and Grace C. Dearmin 4. Order to Show Cause re: Dismissal <u>Motion to Tax Costs of Nicholas Dutra</u> Plaintiffs Michael P. Farah's and The Eric Wyser Charitable Trust's unopposed motion to strike or tax the costs memorandum filed by Defendant Nicholas Dutra is granted in part and denied in part. The right to recover costs of suit is determined entirely by statute. (Code Civ. Proc., § 1032 et seq.) Unless otherwise expressly prohibited by statute, a prevailing party is entitled to recover costs as a matter of right. (Code Civ. Proc., § 1032, subd. (b).) Code of Civil Procedure section 1033.5, subdivision (a) specifies cost items that are allowable, including filing and motion fees, deposition costs, and court reporter fees. (Code Civ. Proc., § 1033.5, subd. (a)(3).) Allowable costs "shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation" and "reasonable in amount." (Code Civ. Proc., § 1033.5, subd. (c).) If the items on their face appear to be proper charges, the verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonable or necessary. (<i>Ladas v. California State Auto. Assn.</i> (1993) 19 Cal.App.4th 761,774-776; <i>Jones v. Dumrichob</i> (1998) 63 Cal.App.4th 1258, 1266 [mere statements in points and authorities and declaration of counsel insufficient to rebut prima facie showing]; see <i>Wagner Farms, Inc. v. Modesto Irrigation Dist.</i> (2006) 145 Cal.App.4th 765, 777-778 [prevailing defendant properly awarded its photocopying costs which were supported by invoice from copy company, when plaintiffs failed to present any evidence showing that copying could have been done for less]. On the other hand, items that are properly objected to are put in issue, and the burden of proof is on the party claiming them as costs. (<i>Ladas v. California State Auto. Assn., supra</i> , 19 Cal.App.4th at pp. 774-776.)

		On 3/12/26, Defendant Nicholas Dutra filed and served his memorandum of costs. Defendant did not attach a Memorandum of Costs Worksheet (Form MC-011). He did attach an “Activities Export” listing various fees presumably incurred. Plaintiffs argue that the memorandum should be stricken in its entirety because Defendant did not include the Worksheet which they contend is required. There is no legal authority that supports that the Worksheet is required in addition to the verified Memorandum on Form MC-010. (See CRC, Rule 3.1700.) Supporting documentation of the claimed costs is not required until and unless the costs have been put in issue via a motion to strike or tax the costs. (See <i>Jones v. Dumrichob</i> (1998) 63 Cal.App.4th 1258, 1267.) Therefore, the motion to strike all costs in their entirety based on Defendant’s failure to file the worksheet is denied. As for specific costs items, the Court taxes \$3,283.40 from Defendant’s claimed filing and motion fees and \$2,840.93 representing the costs claimed as “Other.” Plaintiffs contend that only \$620 has been shown as proper filing fees. The Court has reviewed the “Activities Export” attached to Defendant’s memorandum of costs, and finds that there are additional proper filing fees claimed, resulting in a total of \$873.90. The Court agrees that the “Other” category of \$2,840.93 should be stricken. Defendant did not file an opposition and thus fails to meet his burden to show that these costs were reasonable and necessary. Based on the foregoing, the Court taxes Defendant Nicholas Dutra’s costs in the amount of \$6,124.33, and allows \$2,792.02. Plaintiffs shall give notice. <u>Motion to Tax Costs of Mitchell Zogob and Motion to Tax Costs of Therese Harris and Grace C. Dearmin</u> Tentative rulings issued by Court 7-13-2026.
105	2025-01468377 Wayland vs. General Motors, LLC	Demurrer to Amended Complaint Defendant General Motors, LLC’s unopposed demurrer to Plaintiff Mark Wayland’s First Amended Complaint is sustained with 15 days leave to amend. A demurrer presents an issue of law regarding the sufficiency of the allegations set forth in the complaint. (<i>Lambert v. Carneghi</i> (2008) 158 Cal.App.4th 1120, 1126.) The challenge is limited to the “four corners” of the pleading (which includes exhibits attached and incorporated therein) or from matters outside the pleading which are judicially noticeable under Evidence Code §§ 451 or 452. Although California courts take a liberal view of inartfully drawn complaints, it remains essential that a complaint set forth the actionable facts relied upon with sufficient precision to inform the defendant of what plaintiff is complaining, and what remedies are being sought. (<i>Leek v. Cooper</i> (2011) 194 Cal.App.4th 399, 413.) On demurrer, a complaint must be liberally construed. (CCP § 452; <i>Stevens v.</i>